

3. **23CV03127 Wilson, Daedalys et al v. Park, Lisa et al.**

*EVENT: Plaintiffs and Cross-Defendants' Daedalys Wilson and Kimberly Torres' Motion for Relief from Waiver of Objections*

Plaintiffs and Cross-Defendants' Daedalys Wilson and Kimberly Torres' Motion for Relief from Waiver of Objections is GRANTED. The ruling does not preclude Defendants from filing a discovery motion should they deem it necessary. The Court will sign the proposed order.

4. **25CV05091 De Baun, Roger Dale v. Fulton, Lauren Lynn et al.**

*EVENT: City of Oroville's Demurrer to Plaintiff Roger Dale De Baun's First Amended Complaint*

*Fourth Cause of Action (Title II)*

The demurrer is OVERRULED.

Defendant's first contention is that the pleading fails to allege whether the subject sidewalk was an "existing facility" for Title II purposes (i.e. whether the sidewalk was constructed before or after 1992). Less specificity is required when it appears from the nature of the allegations that the defendant must necessarily possess full information concerning the facts of the controversy. (*Miles v. Deutsche Bank National Trust Co.* (2015) 236 Cal.App.4th 394, 403) Such is the case here. Defendant necessarily possesses full information as to when the subject sidewalk was constructed. The pleading sufficiently alleges in the alternative that the subject sidewalk constituted an existing facility.

Defendant proceeds to argue that the pleading does not allege sufficient facts demonstrating program-wide issues with city sidewalks. However, Defendant does not cite a case indicating program-wide issues must be specifically alleged at the pleading stage, nor is the Court aware of any. The cases cited were in the context of summary judgment, trial, and other evidentiary hearings.

Here again, facts relating to whether the sidewalks are inaccessible on a program level to disabled persons is information we would expect to be in the City's possession. The pleading sufficiently alleges program level inaccessibility.

Defendant next argues the allegations of being forced into the roadway establish injury not a Title II violation. Defendant seems to suggest that the allegation of Plaintiff's injury does not demonstrate program-wide inaccessibility to sidewalks. That's true, but as

discussed, Plaintiff has sufficiently alleged program level inaccessibility for pleading purposes.

Next Defendant argues Plaintiff cannot plead in the alternative that the sidewalks were altered after January 26, 1992 thus potentially implicating the stricter facility standards. Defendant cites no authority for this argument and it contradicts the general principle permitting alternative pleading. Again, whether the sidewalk was altered is information we would expect to be in the City's possession.

Lastly, Defendant contends the cause of action is subject to a special demurrer for uncertainty because it cannot be ascertained whether the program access standard or the facility access standard applies. Demurrers for uncertainty are disfavored, and are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond. (*A.J. Fistes Corp. v. GDL Best Contractors, Inc.*, (2019) 38 Cal. App. 5th 677, 695)

This is not an incomprehensible pleading. As discussed, Plaintiff is permitted to plead in the alternative.

#### *Sixth Cause of Action (Disabled Persons Act)*

The demurrer is overruled.

Because the Court has found the allegations supporting the ADA claim are sufficient for pleading purposes, the demurrer to the Disabled Person's Act claim fails.

As to the proposed Second Amended Complaint lodged with the opposition, Plaintiff of course is free to file a motion for leave to amend if he so desires.

Defendant shall file and serve an answer within 20 days' notice of this order.

Plaintiff shall prepare and submit a form of order consistent with this ruling within 2 weeks.

### **5. 25CV01590 Quality Loan Service Corp v. All Claimants to Surplus Funds et al**

#### *EVENT: Wilmington Trust, National as Trustee of Bravo Residential Funding Trust 2019-NQM2'S Claim to Interpled Funds*

The Court has reviewed the Wilmington Trust, National as Trustee of Bravo Residential Funding Trust 2019-NQM2'S Claim to Interpled Funds. The claim appears to be in order and the claimant appears to have a priority claim over a portion of the funds. The claimant's petition is granted. The clerk is directed to disburse \$41,730.51 payable to Loan Acquisition Trust 2017-RPL1, c/o McCarthy & Holthus, LLP Attn: Surplus Funds Department and mailed to 2763 Camino Del Rio South, Suite 100, Sand Diego, CA 92108.

Claimant shall prepare the form of order.